

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Genevieve Lamont	Team: Squad #8	CCRB Case #: 201901381	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/12/2019 7:00 PM	Location of Incident: Intersection of 167th Street and Grant Avenue	Precinct: 44	18 Mo. SOL 8/12/2020	EO SOL 3/29/2021	
Date/Time CV Reported Thu, 02/14/2019 10:59 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 02/14/2019 10:59 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alfred Maldonado	7409	955117	044 PCT
2. POM Hensley Caraballo	21957	962970	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Alfred Maldonado	Force: Police Officer Alfred Maldonado used physical force against § 87(2)(b)	
B.POM Alfred Maldonado	Force: Police Officer Alfred Maldonado hit § 87(2)(b) against a vehicle.	
C.POM Hensley Caraballo	Abuse: Police Officer Hensley Caraballo searched the vehicle in which § 87(2)(b) was an occupant.	
D.POM Hensley Caraballo	Abuse: Police Officer Hensley Caraballo refused to provide his name to § 87(2)(b)	

Case Summary

On February 14, 2019, § 87(2)(b) filed the following complaint with the CCRB online.

On February 12, 2019, at approximately 7:00 p.m., § 87(2)(b) was pulled over by PO Alfred Maldonado and PO Hensley Caraballo of the 44th Precinct at the intersection of 167th Street and Grant Avenue in the Bronx. After a back and forth conversation between PO Maldonado and § 87(2)(b) who refused to provide his information, PO Maldonado threatened to pull § 87(2)(b) out of the car if he did not comply. After further refusal to provide identification, PO Maldonado reached through the window, opened the door, pulled § 87(2)(b) out, and allegedly slammed him against the rear driver's side door (**Allegation A: Force; § 87(2)(g) and Allegation B: Force; § 87(2)(g)**). PO Caraballo allegedly searched the vehicle while § 87(2)(b) was placed in the back of the police vehicle (**Allegation C: Abuse; § 87(2)(g)**).

Upon being released from the 44th Precinct stationhouse, § 87(2)(b) requested PO Caraballo's information, which he allegedly refused to provide (**Allegation D: Abuse; § 87(2)(g)**). § 87(2)(b) was issued seven summonses § 87(2)(b).

Body-worn camera footage from PO Maldonado and PO Carballo, as well as cellphone footage of the incident, was obtained from NYPD Legal and § 87(2)(b) respectively [BR 02, BR 03, and BR 04, respectively].

Findings and Recommendations

Allegation (A) Force: Police Officer Alfred Maldonado used physical force against § 87(2)(b) § 87(2)(b).

Allegation (B) Force: Police Officer Alfred Maldonado hit § 87(2)(b) against a vehicle.

It is undisputed that PO Maldonado pulled § 87(2)(b) out of his vehicle. § 87(2)(g)

§ 87(2)(b) testified that PO Maldonado requested his driver's license and § 87(2)(b) asked why he was being pulled over. PO Maldonado then told him, "Give me your license and registration or I'm going to pull you out of the vehicle" [BR 05]. § 87(2)(b) asked PO Maldonado to speak with a commanding officer, at which PO Maldonado reached into the car through the open driver's window, opened the car door, grabbed him by his shirt with both hands, and pulled him out of the car. PO Maldonado then slammed § 87(2)(b)'s chest against the rear driver's side door and handcuffed him.

PO Maldonado acknowledged that he and § 87(2)(b) had a back and forth conversation, in which he requested § 87(2)(b)'s license approximately three times and warned him that he would be pulled out of the vehicle if he did not comply [BR 06]. § 87(2)(b) responded, "Alright, go ahead and pull me." PO Maldonado reached through the window, unlocked the car, and grabbed § 87(2)(b) by the arm. He stated that § 87(2)(b) exited the car willingly when he grabbed him. PO Maldonado said that he placed him next to the car and handcuffed him behind his back. He did not recall if he pushed § 87(2)(b) against the car to handcuff him. PO Caraballo § 87(2)(g) did not see PO Maldonado reach into the car and pull § 87(2)(b) out [BR 07]. He did not observe PO Maldonado slam § 87(2)(b) against the car. Footage from PO Maldonado and PO Caraballo's body-worn cameras corroborated that PO Maldonado did not slam § 87(2)(b)

against the vehicle when he was pulled out of the car, but rather placed him against the car to handcuff him. [BR 02 and BR 03, respectively].

According to People v. Forbes, 283 AD. 2d at 93., during a lawful car stop, the police may order the driver and all passengers out of the vehicle until the stop is concluded [BR 08].

According to NYPD Patrol Guide 221-01, any use of force by officers must be reasonable under the circumstances [BR 09]. Members of service will use only the reasonable force necessary to gain control or custody of a subject.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse: Police Officer Hensley Caraballo searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that that PO Caraballo searched his car on scene. § 87(2)(b), § 87(2)(g)

§ 87(2)(b) testified that, after he was placed in the back of the police vehicle, he observed PO Caraballo search the backseat, trunk, middle console, and glove compartment of his car before he was transported to the 44th Precinct stationhouse. PO Maldonado did not recall what PO Caraballo was doing before he transported § 87(2)(b). PO Caraballo's testimony and body-camera footage determined that he only entered the driver seat of § 87(2)(b)'s car, before driving to the stationhouse [BR 03]. PO Caraballo did not enter any other part of the car or search in the car on scene.

PO Maldonado and PO Caraballo stated that while at the stationhouse, they searched the middle console of § 87(2)(b)'s vehicle for his identification, which § 87(2)(b) told them to do. Body-camera footage from both officers confirmed this [BR 02 and BR 03].

§ 87(2)(g)

Allegation (D) Abuse: Police Officer Hensley Caraballo refused to provide his name to

§ 87(2)(b).

§ 87(2)(b) testified that PO Caraballo refused to provide his name when asked. § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) testified that when his car was released to him, he began recording the officers and requested PO Maldonado's information, who responded that it was on the summons. He then asked PO Caraballo for his information, who ignored his request. Neither PO Maldonado nor PO Caraballo recalled if § 87(2)(b) requested PO Caraballo's name. Cellphone footage from § 87(2)(b) showed that he requested PO Maldonado's information, but not PO Caraballo's [BR 04]. He recorded PO Caraballo's badge number on his phone, but did not directly ask for his name.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party to [BR 10].
- PO Maldonado has been a member of service for five years and has been subject to two complaints and two allegations, none of which have been substantiated. PO Maldonado's CCRB history shows that his past two complaints involved allegations of physical force, both of which were exonerated.
- PO Caraballo has been a member of service for two years and has been party to no prior CCRB complaints. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On April 11, 2019, a FOIL request was filed with the New York City Office of the Comptroller and will be added to the case file upon receipt [BR 11].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date